USOAP CMA ~~2020~~2024 Protocol Questions
Primary Aviation Legislation and Specific Operating Regulations — LEG

Explanatory Note on the ~~2020~~2024 Edition of the Protocol Questions (PQs):

Revised on the basis of the ~~2017~~2020 edition, this ~~2020~~2024 edition of the USOAP CMA Protocol Questions (PQs) follows the ~~recommendations of~~ High-level Conference on COVID-19 (HLCC 2021) Recommendations (C-WP/15312 refers) regarding the ~~Group of Experts for a~~ integration of State Safety Programme Implementation Assessment (SSPIA) with traditional Universal Safety Oversight Audit Programme (USOAP ~~–~~) Continuous Monitoring Approach (CMA ~~Structured Review (GEUSR) (C-WP14757 refers))~~ activities that ~~was~~were approved by the Council of ICAO on ~~18 June 2018.~~4 March 2022 (C-DEC 225/7 refers). Some notable features of this ~~2020~~2024 edition of PQs are the ~~exclusion~~addition of ~~certain PQs that are not relevant~~ Safety Management System (SMS) related PQs to the ~~State safety oversight system or the accident~~areas of personnel licensing and ~~incident investigation system, reduction of the total number~~training (PEL), aircraft operations (OPS), airworthiness of ~~PQs (from 943 to 790~~aircraft (AIR), air navigation services (ANS), and ~~identification~~aerodromes and ground aids (AGA), as well as the addition of a ~~subset of Priority PQs.~~

~~At the same time, a separate~~ set of new PQs on State Safety Programme (SSP) ~~was developed in 2018 to assess the SSP implementation by States. These~~ as a new audit area.

The newly added PQs on SSP and SMS will have an undetermined status thus will not affect the Effective Implementation (EI) scores, until they are audited. Dedicated EI score for SSP ~~related PQs are posted on the "CMA Library" page of the USOAP CMA online framework (https://www.icao.int/usoap).~~

will be provided separately. Once States and relevant regional organizations are migrated to the ~~2020~~2024 PQ edition, the ~~Effective Implementation (~~EI~~) values~~ scores for ~~all their~~the USOAP activities on safety oversight, as indicated on the USOAP CMA online framework, will ~~also~~ be updated and adjusted accordingly.

The existing SSPIA PQs, including the self-assessments submitted and the assessment results for those States which had received SSPIAs, will be archived and can be made available upon request.

Introduction to the ICAO USOAP CMA Protocol Questions

Protocol Questions (PQs) are the primary tool used in the ICAO Universal Safety Oversight Audit Programme (USOAP) Continuous Monitoring Approach (CMA) for assessing the effective implementation of the eight critical elements (CEs) of a State's safety oversight system. Developed based on ~~the~~ ICAO Standards and Recommended Practices (SARPs), Procedures for Air Navigation Services (PANS) and ICAO guidance material, the PQs are revised periodically by ICAO to reflect amendments to the ICAO provisions and reference documents.

The PQs are organized by audit areas and each PQ is associated with one of the eight CEs.

The ~~eight~~nine audit areas are as follows:

1) Primary aviation legislation and specific operating regulations (LEG);
2) Civil aviation organization (ORG);
3) Personnel licensing and training (PEL);
4) Aircraft operations (OPS);
5) Airworthiness of aircraft (AIR);
6) Aircraft accident and incident investigation (AIG);
7) Air navigation services (ANS); ~~and~~
8) Aerodromes and ground aids (AGA); and
~~8)~~9) State Safety Programme (SSP).

The eight CEs are as follows:

CE-1. Primary aviation legislation
CE-2. Specific operating regulations
CE-3. State system and functions
CE-4. Qualified technical personnel
CE-5. Technical guidance, tools and provision of safety-critical information
CE-6. Licensing, certification, authorization and approval obligations
CE-7. Surveillance obligations
CE-8. Resolution of safety issues

States are expected to use the PQs to conduct regular self-assessments and in this way, monitor the health of their aviation safety oversight system in a proactive manner.

A State is deemed to have *fully addressed* a PQ when it has implemented all the required elements of the PQ. This generates a *"satisfactory"* status of implementation for the PQ. If the State provides insufficient or no evidence of compliance with the elements outlined in the PQ, the PQ is assessed as *"not satisfactory"*. The State is required to develop and implement a corrective action plan (CAP) which fully addresses the associated PQ and all identified deficiencies.

The status of each PQ for a State is reflected in the USOAP CMA Online Framework (https://www.icao.int/usoap) and summarized in the activity report.

For reference purposes, the PQs are hereby presented in a table format. Each PQ is assigned a PQ number (e.g. 1.001), associated with a CE (e.g. CE-1), and supplemented by the relevant "Guidance for Review of Evidence" and "ICAO References". PQs shown in shaded rows can be assessed only in a USOAP CMA on-site activity, while Priority PQs are indicated as such (with "Yes" note) under the "PPQ" column.

For each PQ, the corresponding "Guidance for Review of Evidence" provides *an itemized list of elements* to be implemented by the State in order to address the PQ *satisfactorily*. When preparing for a USOAP CMA audit, States should use these listed elements, as applicable, to prepare the necessary supporting documentation and evidence for all PQs within the scope of the audit. When preparing for an ICAO validation activity, States should provide the necessary supporting documentation and evidence for all PQs, within the scope of the validation activity, that were previously assessed as *"not satisfactory"*.

Representatives of a State's civil aviation authority/investigation authority who participate in USOAP CMA activities should be familiar with each PQ and the related "Guidance for Review of Evidence" that will be addressed during the activities. All the information and evidence for each PQ that are to be provided to the USOAP CMA activity team should be prepared in advance.

The "Summary of Amendments" table provides a list of new, revised, merged and deleted PQs and a brief description of the amendments.

For the ~~20202~~2024 edition of the PQs, the total number of PQs is ~~790~~851 and a breakdown for each area is shown below:

	Area	Number of ~~20202~~2024 PQs
1	LEG	23
2	ORG	13
3	PEL	~~93~~100
4	OPS	~~126~~136
5	AIR	~~186~~198
6	AIG	84
7	ANS	~~122~~128
8	AGA	~~143~~153
9	SSP	16
TOTAL NUMBER		***~~790~~851***

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General Guidelines for All Areas

Legislation, Primary Aviation Legislation and Specific Operating Regulations

The term "legislation" in the USOAP CMA Protocol Questions is used as a generic term to include primary aviation legislation and specific operating regulations.

The term "primary aviation legislation" in the USOAP CMA Protocol Questions includes any legislative provision and/or instrument promulgated and enforceable in the State (e.g. laws, acts, codes and international treaties).

The term "specific operating regulations" in the USOAP CMA Protocol Questions includes any binding regulatory provisions and/or instruments in the State (e.g. regulations, decrees, rules, and orders).

Processes and Procedures

Processes and procedures should clarify *who does what, how, when* (or *within what timeframes*) and *in coordination with whom*, as applicable.

Delegation of Duties and Tasks

When a State has delegated some of its safety oversight duties and tasks to another State or organization, the PQs on the delegation may have to be evaluated with the entity to which the duties and tasks have been delegated.

The State remains responsible for ensuring that the delegated duties and tasks are performed, at all times, by qualified individuals who ensure the implementation of the applicable legislation as well as the established processes and procedures. There should also be a system in place for conducting surveillance of the delegated duties and tasks and a process for the resolution of identified safety deficiencies.

Regulatory Function versus Service Provider Function

For a State which has not established a clear separation between its regulatory function and its service provider function or where the State Civil Aviation Authority (CAA) is both the regulator *AND* the service provider, the related PQs remain applicable.

Industry Visits

Industry visits are conducted to review and verify that the implementation of the established requirements, procedures and safe practices in each area complies with ICAO provisions and the State's applicable national legislation.

On-Site Activity

PQs that can only be assessed in a USOAP CMA on-site activity are shown in shaded rows in the PQ table.

Priority Protocol Questions (PPQs)

A subset of PQs is classified as Priority PQs or PPQs, which, if found not satisfactory, may indicate a lack of capability by a State to identify and/or resolve operational safety and fundamental accident investigation deficiencies effectively.

Annex

The term "Annex" in the USOAP CMA Protocol Questions stands for Annex to the Chicago Convention.

ICAO References

The ICAO references are classified as follows (shown here in alphabetical order): Chicago Convention (CC), ICAO Circular (Cir), ICAO Guidance Material (GM), Procedures for Air Navigation Services (PANS), Recommended Practice (RP), Regional Supplementary Procedures (SUPPS), and Standard (STD).

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Specific Guidelines for LEG

A State may adopt regulations developed by another State by incorporating them into its national regulatory framework.

A State may also opt to adapt regulations developed by another State by tailoring them to the scope and requirements of its aviation environment.

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Acronyms and Abbreviations

A = Annex to the Chicago Convention
AIP = Aeronautical Information Publication
AIS = Aeronautical Information Service
Amdt. = Amendment
AMO = Approved maintenance organization
App. = Appendix
Art. = Article
C = Chapter
CAA = Civil Aviation Authority
CC = Chicago Convention
CE = Critical Element
CEO = Chief Executive Officer
CIR = ICAO Circular
CMA = Continuous Monitoring Approach
DG = Director General; dangerous goods
Doc = ICAO Document or Manual
GM = ICAO Guidance Material
LEG = Primary Aviation Legislation and Specific Operating Regulations
PANS = Procedures for Air Navigation Services
PPQ = Priority Protocol Question
PQ = Protocol Question
SARPs = Standards and Recommended Practices
STD = International Standard contained in an Annex to the Chicago Convention
SUPPS = Regional Supplementary Procedures
USOAP = Universal Safety Oversight Audit Programme

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List of ICAO Reference Documents

Doc 7300 — *Convention on International Civil Aviation*
(also known as the Chicago Convention)
Annex 6 — *Operation of Aircraft*
Part I — *International Commercial Air Transport — Aeroplanes* (Amdt. ~~43, 11th~~48, 12th edition, July ~~2016~~2022)
Part III — *International Operations — Helicopters* (Amdt. ~~22, 9th~~24, 11th edition, July ~~2016~~2022)
Annex 8 — *Airworthiness of Aircraft* (Amdt. ~~106, 12th~~109, 13th edition, July ~~2018~~2022)
Annex 15 — *Aeronautical Information Services* (Amdt. ~~40~~42, 16th edition, July 2018
Annex 19 — *Safety Management* (Amdt. 1, 2nd edition, July 2016)
Doc 8126 — *Aeronautical Information Services Manual* (~~6th~~7th edition, ~~2003~~2022)
Doc 8335 — *Manual of Procedures for Operations Inspection, Certification and Continued Surveillance* (~~5th~~6th edition, ~~2010~~2022)
Doc 9734 — *Safety Oversight Manual*
Part A — *The Establishment and Management of a State Safety Oversight System* (3rd edition, 2017)
Part B — *The Establishment and Management of a Regional Safety Oversight Organization* (Amdt. 1, 2nd edition, 2011)
Doc 9735 — *Universal Safety Oversight Audit Programme Continuous Monitoring Manual* (~~4th~~5th edition, ~~2014~~2023)
Doc 9774 — *Manual on Certification of Aerodromes* (1st edition, 2001)
Doc 9946 — *Manual on Regional Accident and Incident Investigation Organization* (1st edition, 2011)
Doc 10055 — *Manual on Notification and Publication of Differences* (1st edition, 2019)
Doc 10059 — *Manual on the Implementation of Article 83* bis *of the Convention on International Civil Aviation* (1st edition, 2017)
Doc 10066 — *Procedures for Air Navigation Services: Aeronautical Information Management* (1st edition, 2018)
Cir 295 — *Guidance on the Implementation of Article 83* bis *of the Convention on International Civil Aviation* (February 2003)

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SUMMARY OF AMENDMENTS – LEG PQs

~~*Notes*~~

Note — The PQs are listed here sequentially for convenience. This may differ from their order on the USOAP CMA Online Framework or in the following document. ~~The PQs in the shaded rows require a USOAP CMA on-site activity. For the remaining PQs, no on-site activity is required in most cases.~~

PQ No. ~~(2017~~ (2020 version)	PQ No. ~~(2020~~ (2024 version)	Type of Amendment					Description of Amendments
		New	Revised	Deleted	Merged	No change	
1.001	1.001	☐	☒	☐	☐	☐✓	~~Guidance revised for clarity. Reference revised.~~No change.
1.005	1.005	☐	☒	☐	☐	☐✓	~~Reference revised.~~No change.
1.007	1.007	☐	☒	☐	☐	☐✓	~~Guidance revised for clarity. Reference revised.~~No change.
1.009	1.009	☐	☒	☐	☐	☐✓	~~Question and guidance revised for clarity. Reference revised.~~No change.
1.011	1.011	☐	☒	☐	☐	☐✓	~~Question and guidance revised for clarity. Reference revised. CE-1 changed to CE-5.~~No change.
1.013	1.013	☐	☒	☐	☐	☐✓	~~Reference revised.~~No change.
1.015	1.015	☐	☒	☐	☐	☐✓	~~Reference revised.~~No change.
1.019	1.019	☐	☒	☐	☐	☐✓	~~Question revised for clarity. Reference revised.~~No change.
1.023	1.023	☐	☒	☐	☐	☐✓	~~Question and guidance revised for clarity. Reference revised.~~No change.
1.025	1.025	☐	☒	☐	☐	☐✓	~~Guidance revised for clarity. Reference revised.~~No change.
1.027	1.027	☐	☒	☐	☐	☐✓	~~Guidance revised for clarity. Reference revised.~~No change.
1.028	1.028	☐	☒	☐	☐	☐✓	~~Guidance revised for clarity. Reference revised.~~No change.
1.029	1.029	☐	☒	☐	☐	☐✓	~~Question and guidance revised for clarity. Reference revised.~~No change.
1.051	1.051	☐	☒	☐	☐	☐✓	~~Reference revised.~~No change.
1.053	1.053	☐	☒✓	☐	☐	☐	Reference revised.
1.055	1.055	☐	☒	☐	☐	☐✓	~~Reference revised.~~No change.
1.101	1.101	☐	☒✓	☐	☐	☐	~~Reference~~Guidance revised for clarity.
1.103	1.103	☐	☒	☐	☐	☐✓	~~Reference revised.~~No change.
1.107	1.107	☐	☒	☐	☐	☐✓	~~Reference revised.~~No change.
1.109	1.109	☐	☒	☐	☐	☐✓	~~Reference revised.~~No change.
1.111	1.111	☐	☒	☐	☐	☐✓	~~Reference revised.~~No change.
1.151	1.151	☐	☒	☐	☐	☐✓	~~Question and guidance revised for clarity. Reference revised.~~No change.
1.205	1.205	☐	☒✓	☐	☐	☐	Reference revised.

PQ No. ~~(2017~~ (2020 version)	PQ No. ~~(2020~~ (2024 version)	Type of Amendment					Description of Amendments
		New	Revised	Deleted	Merged	No change	

PQ No.	Protocol Question	Guidance for Review of Evidence	ICAO References	PPQ	CE
1.001	Has the State promulgated primary aviation legislation to enable it to address its obligations as a signatory to the Chicago Convention?	1) Confirm title, date of promulgation and last amendment of all primary aviation legislation. 2) Verify that the content of the primary aviation legislation is consistent, sufficient (addressing all audit areas as needed) and properly organized.	CC Part I STD A19 3.2.1.1 GM Doc 9734 Part A, C3	Yes	CE-1
1.005	Does the primary aviation legislation provide for the introduction/adoption and subsequent promulgation of specific operating regulations?	Verify that provisions allow for the introduction/adoption of specific operating regulations and at least cover all Annexes in the areas of PEL, OPS (including dangerous goods), AIR, AIG, ANS and AGA.	CC Part I STD A19 3.2.1.1 GM Doc 9734 Part A, C3	Yes	CE-1

PQ No. ~~(2017~~ (2020 version)	PQ No. ~~(2020~~ (2024 version)	Type of Amendment					Description of Amendments			
		New	Revised	Deleted	Merged	No change				
1.007	Has the State established a rulemaking process to enable the timely development and promulgation of specific operating regulations in compliance with the Annexes?						Verify that: a) ~~Th~~the rulemaking process includes all applicable steps, in conformance with the State's legal system, as well as realistic timelines for the various steps; b) the procedures or other means of compliance require that current specific operating regulations repeal previous specific operating regulations, if required; and c) all relevant entities (safety oversight entities/investigation authority) are included in the process (during the development and/or consultation) for PEL, OPS (including dangerous goods), AIR, AIG, ANS and AGA.	CC Art. 37 STD A19 3.2.1.1 & 3.2.2 GM Doc 9734 Part A, C3	Yes	CE-2
1.009	Has the State established a process for amending its specific operating regulations or, if necessary, its primary aviation legislation, taking into consideration, among others, ICAO provisions and their amendments?						1) Review the established process for evaluating amendments to all Annexes and for determining the need to amend specific operating regulations or, if necessary, the primary aviation legislation. 2) Verify that the process includes all applicable steps and timelines, including the necessary coordination between the relevant technical and legal experts when	CC Art. 37 STD A19 3.2.1.1 & 3.2.2 GM	Yes	CE-2

PQ No. ~~(2017~~ (2020 version)	PQ No. ~~(2020~~ (2024 version)	Type of Amendment					Description of Amendments			
		New	Revised	Deleted	Merged	No change				
							necessary. Note to the auditor: Implementation of this PQ will be verified in all audit areas.	Doc 9734 Part A, C3		
1.011	Does the State make the primary aviation legislation, specific operating regulations, directives, orders, circulars, publications, etc. readily available to the public?						Review the means for making the following documents available to the public: a) primary aviation legislation; b) specific operating regulations; and c) directives, orders, circulars, publications, etc. Notes to the auditor: 1) Verify in all audit areas. 2) The State may make documents available through official gazette, web access, library, etc.	STD A19 3.2.1.1, 3.2.2 & 3.2.5 GM Doc 9734 Part A, C3		CE-5
1.013	Does the primary aviation legislation provide for the establishment of a civil aviation organization(s) and the appointment of Director General(s)						1) Review relevant legislation (primary aviation legislation for autonomous CAAs or appropriate legal basis in other cases).	STD A19 3.2.1.1	Yes	CE-1

PQ No. ~~(2017~~ (2020 version)	PQ No. ~~(2020~~ (2024 version)	Type of Amendment					Description of Amendments		
		New	Revised	Deleted	Merged	No change			
	(DGs)/Chief Executive Officer(s) (CEOs)?						2) Verify the level of authority delegated to the CAA(s). Note to the auditor: This PQ is not linked to the AIG PQ 6.003.	GM Doc 9734 Part A, C3		
1.015	Does the primary aviation legislation clearly delegate authority to each Director General (DG)/Chief Executive Officer (CEO) who has a safety oversight responsibility?						1) Review relevant legislation (primary aviation legislation for autonomous CAAs or appropriate legal basis in other cases). 2) Verify that: a) ~~The~~the legislation stipulates delegated authority; b) ~~The~~the legislation includes all DGs/CEOs dealing with civil aviation safety oversight; and c) ~~The~~the authority delegated covers the following audit areas: PEL, OPS (including dangerous goods), AIR, ANS and AGA. Note to the auditor: This PQ is not linked to AIG PQ 6.004.	STD A19 3.2.1.1 GM Doc 9734 Part A, C3	Yes	CE-1

PQ No. ~~(2017~~ (2020 version)	PQ No. ~~(2020~~ (2024 version)	Type of Amendment					Description of Amendments		
		New	Revised	Deleted	Merged	No change			
1.019	If the State has transferred safety oversight responsibilities to a State/regional or supranational organization, is there an appropriate legal basis for this transfer?						1) Identify the legal instrument(s) for the transfer. 2) Confirm notification to ICAO of the transfer of responsibilities.	STD A19 3.2.1.1 GM Doc 9734 Part A, C3 Part B Doc 9946		CE-1
1.023	Does the primary aviation legislation provide for the issuance of additional binding instruments, such as orders and directives, in support of safety oversight activities?						Verify: a) ~~The~~the inclusion of provisions for the issuance of additional binding instruments in the primary aviation legislation; b) ~~The~~the enforcement capability for non-compliance; and c) ~~The~~the relevant delegation of authority for the issuance of additional binding instruments, including orders and directives.	STD A19 3.2.1 GM Doc 9734 Part A, C3	Yes	CE-1

PQ No. ~~(2017~~ (2020 version)	PQ No. ~~(2020~~ (2024 version)	Type of Amendment					Description of Amendments		
		New	Revised	Deleted	Merged	No change			
							Note to the auditor: The primary aviation legislation may also provide for the issuance of non-binding instructions, such as circulars and instructions.		
1.025	Has the State established procedures for identifying and notifying to ICAO differences between ICAO SARPs and its legislation and practices, if any?						Verify~~:~~ that: a) ~~The~~the procedures used for the identification and notification of differences, including for specific operating regulations adopted by reference; b) ~~That~~ the procedures address each entity responsible for the relevant Annex, including AIG, when an entity separate from the CAA has been established; and c) ~~That~~ the procedures include all applicable steps and timelines, including the necessary coordination between the relevant technical and legal experts when necessary. Note to the auditor: Implementation of this PQ will be verified in all audit areas.	CC Art. 38 Foreword to Annexes to Chicago Convention GM Doc 9734 Part A, C3 Doc 10055	Yes	CE-2

PQ No. ~~(2017~~ (2020 version)	PQ No. ~~(2020~~ (2024 version)	Type of Amendment					Description of Amendments		
		New	Revised	Deleted	Merged	No change			
1.027	Does the legislation provide for the granting of exemptions?						Verify that the legislation provides for the granting of exemptions. Notes to the auditor: 1) The provisions should be in the State's primary aviation legislation and/or the specific operating regulations, as appropriate for the type of issue addressed. 2) The establishment of a policy and procedures is addressed in LEG PQ 1.028. 3) The term "exemptions" also includes exceptions, deviations, variations and prolonged extensions. 4) This PQ does not apply to AIG.	STD A19 3.2.2 GM Doc 9734 Part A, C3	Yes	CE-2
1.028	Has the State established a policy and associated procedures for the granting of exemptions?						Verify that the policy and procedures include: a) ~~The~~the criteria for the conduct and review of risk assessments, analyses, aeronautical studies, etc.; b) ~~The~~the limitations or other conditions imposed, as applicable, when an	STD A19 3.2.5 GM Doc 9734		CE-5

PQ No. ~~(2017~~ (2020 version)	PQ No. ~~(2020~~ (2024 version)	Type of Amendment					Description of Amendments		
		New	Revised	Deleted	Merged	No change			
							exemption is granted; and c) ~~The~~the recording and publication of exemptions granted. Notes to the auditor: 1) Implementation of this PQ will be verified in PEL, OPS, AIR, ANS and AGA. 2) The term "exemptions" also includes exceptions, deviations, variations and prolonged extensions. 3) This PQ does not apply to AIG.	Part A, C3		
1.029	If the State has adopted specific operating regulations from another State/organization, has it established processes for ensuring that its specific operating regulations are amended as needed subsequent to an Annex amendment or an amendment by the originating State/organization?						1) Determine if the State has adopted specific operating regulations. 2) Verify that the processes take into consideration the latest amendments to the Annexes to the Chicago Convention, including filing of differences. Note to the auditor:	CC Arts. 37 & 38 STD A19 3.2.2 GM Doc 9734 Part A, C3		CE-2

PQ No. ~~(2017~~ (2020 version)	PQ No. ~~(2020~~ (2024 version)	Type of Amendment					Description of Amendments		
		New	Revised	Deleted	Merged	No change			
							Verify in all audit areas, particularly in AIR regarding national code of airworthiness.			
1.051	Does the primary aviation legislation provide for the enforcement of applicable legislation?						Verify that: a) ~~Enforcement~~enforcement provisions are included in the primary aviation legislation (additional provisions may be contained in the specific operating regulations); b) ~~The~~the legislation specifies penalties; c) ~~The~~the penalties are sufficient to serve as a deterrent; and d) ~~The~~the above is in place for the following audit areas: PEL, OPS (including dangerous goods), AIR, ANS and AGA. Note to the auditor: This PQ does not apply to AIG.	CC Art. 12 STD A19 3.2.1.1 GM Doc 9734 Part A, C3	Yes	CE-1
1.053	Does the legislation provide authority for: a) ~~The~~the issuance of aviation documents~~,~~ ;						Verify that the legislation addresses the issuance, suspension and/or revocation and restrictions in the following documents~~:~~ , as applicable:	STD A19 3.2.~~2~~ 1	Yes	CE-1

PQ No. ~~(2017~~ (2020 version)	PQ No. ~~(2020~~ (2024 version)	Type of Amendment					Description of Amendments		
		New	Revised	Deleted	Merged	No change			
	b) ~~Suspension~~suspension and/or revocation of aviation documents~~.~~; and c) ~~Restrictions~~restrictions to be imposed on their validity for non-compliance with the applicable requirements?						1) ~~Personnel~~personnel licences ; 2) ~~Air~~air operator certificates (AOCs~~)~~); 3) ~~Certificates~~certificates of registration ; 4) ~~Certificates~~certificates of airworthiness ; 5) ~~Aircraft~~aircraft radio station licences ; 6) ~~Aerodrome~~aerodrome certificates ; 7) ~~Authorizations~~ authorizations; and 8) ~~Permits.~~ permits. Notes to the auditor: 1) The legal authority for these documents often requires the promulgation of more than one legislation. 2) The aircraft radio station licence is often issued/suspended/revoked by an entity other than the CAA.	GM Doc 9734 Part A, C3		
1.055	Has the CAA established an enforcement policy and associated procedures?						Verify that: 1) ~~The~~the policy and procedures call for enforcement actions (e.g. requests for	CC Art. 12		CE-5

PQ No. ~~(2017~~ (2020 version)	PQ No. ~~(2020~~ (2024 version)	Type of Amendment					Description of Amendments			
		New	Revised	Deleted	Merged	No change				
							corrective actions within specific timelines, administrative penalties or other) that are commensurate with the level/type of infraction or violation identified; and 2) ~~The~~the procedures address coordination with the CAA's legal experts when needed. Notes to the auditor: 1) Separate and not linked PQs on implementation are established in each audit area. 2) This PQ does not apply to AIG.	STD A19 3.2.2 & 3.2.5 GM Doc 9734 Part A, C3		
1.101	Does the primary aviation legislation enable civil aviation inspectors to have unrestricted and unlimited access to aircraft and aviation facilities, as applicable, for the performance of their functions and duties?						Verify: 1) The inclusion of provisions in the primary aviation legislation (additional provisions may be contained in the specific operating regulations); and 2) That the legislation addresses access to~~:~~ — the following, as applicable: a) ~~Aircraft~~ —aircraft; b) ~~Aerodromes~~ —aerodromes;	CC Art. 16 STD A6 Part I, App. 5 Part III, App. 1 A19		CE-1

PQ No. ~~(2017~~ (2020 version)	PQ No. ~~(2020~~ (2024 version)	Type of Amendment					Description of Amendments		
		New	Revised	Deleted	Merged	No change			
							c) ~~Air~~air navigation services facilities ~~—~~; d) ~~Hangars~~ ~~—~~hangars; e) ~~Approved~~approved maintenance organizations (AMOs~~)~~ ~~—~~); f) ~~Workshops~~ ~~—~~workshops; g) ~~Ramps~~ ~~—~~ramps; h) ~~Fuel~~fuel storage facilities ~~—~~; i) ~~Air~~air operator offices ~~—~~; j) ~~Cargo~~cargo handling areas ~~—~~; and k) ~~Aviation~~aviation training organizations facilities. Note to the auditor: This PQ is not linked to AIG PQ 6.021.	3.2.1.1 GM Doc 9734 Part A, C3 Doc 9774 C2 & C3		
1.103	Does the primary aviation legislation enable inspectors to access and inspect aviation documents in accordance with their functions and duties?						1) Verify the inclusion of related provisions in the primary aviation legislation (additional provisions may be contained in the specific operating regulations).	CC Art. 16 STD A6		CE-1

PQ No. ~~(2017~~ (2020 version)	PQ No. ~~(2020~~ (2024 version)	Type of Amendment					Description of Amendments			
		New	Revised	Deleted	Merged	No change				
							2) Examples of documents include: a) ~~Manuals~~ —manuals; b) ~~Certificates~~certificates, approvals, authorizations, permits —; c) ~~Procedures~~ —procedures; d) ~~Technical~~technical files —; e) ~~Personnel~~personnel files —; and f) ~~Personnel~~personnel licences . Note to the auditor: This PQ is not linked to AIG PQ 6.023.	Part I, App. 5 Part III, App. 1 A19 3.2.1.1 GM Doc 8335 Part I, C3 Doc 9734 Part A, C3 Doc 9774 C2 & C3		
1.107	Does the legislation provide for a clear delegation of sufficient legal authority to civil aviation inspectors?						1) Verify provisions in the legislation on delegation of authority to inspectors, either directly or through a sub-delegation (e.g. Director General/Chief Executive Officer). 2) Confirm that inspectors are empowered to carry out surveillance activities (e.g. periodic and random inspections, audits, testing, etc.).	CC Art. 16 STD A19 3.2.1.1 GM		CE-1

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		New	Revised	Deleted	Merged	No change			
							Doc 8335 Part I, C3 & C5 Doc 9734 Part A, C3 Doc 9774 C2 & C3		
1.109	Has the State established legislation to empower inspectors to prevent an aircraft from flying, when justified, for safety reasons, either directly or by using an established process that can be applied in a timely manner?						Verify: 1) ~~The~~the inclusion of provisions in the primary aviation legislation (additional provisions may be contained in the specific operating regulations); 2) ~~The~~the process established, in cases when the inspectors are not empowered to directly prevent an aircraft from flying; and 3) ~~That~~that the process in place can be applied in a timely manner. Note to the auditor: This PQ applies to OPS and AIR only.	STD A8 Part II, 3.6 A19 3.2.1.1 GM Doc 9734 Part A, C3	Yes	CE-1

PQ No. ~~(2017~~ (2020 version)	PQ No. ~~(2020~~ (2024 version)	Type of Amendment					Description of Amendments		
		New	Revised	Deleted	Merged	No change			
1.111	Has the State established legislation to empower inspectors to prohibit any person from exercising the privileges of any aviation licence, certificate or other document, for just cause, either directly or by using an established process that can be applied in a timely manner?						Verify: 1) ~~The~~the inclusion of provisions in the primary aviation legislation (additional provisions may be contained in the specific operating regulations); and 2) ~~That~~that the process in place can be applied in a timely manner. Note to the auditor: This PQ does not apply to AIG.	STD A19 3.2.1.1 GM Doc 9734 Part A, C3	Yes	CE-1
1.151	If the State has ratified Article 83 bis of the Chicago Convention, has it modified its primary aviation legislation and related specific operating regulations to address the transfer of functions and duties as envisaged by Article 83 bis of the Chicago Convention?						Verify that the primary aviation legislation (detailed provisions may be contained in the specific operating regulations) enables the State to recognize the validity of crew licences, certificates of airworthiness and/or radio station licences issued or rendered valid by the State of the Operator under an Article 83 bis agreement. Notes to the auditor: 1) If the State transfers and/or accepts certain functions and duties to/from	CC Art. 83 bis GM Doc 10059 Cir 295		CE-1

PQ No. ~~(2017~~ (2020 version)	PQ No. ~~(2020~~ (2024 version)	Type of Amendment					Description of Amendments		
		New	Revised	Deleted	Merged	No change			
							another State under an Article 83 bis agreement, the relevant provisions should be included in its primary aviation legislation (detailed provisions may be contained in the specific operating regulations), as applicable, to enable the State to do so. 2) If State has not ratified Article 83 bis, this PQ is "Not Applicable". 3) Implementation aspects of Article 83 bis are addressed in ~~PQs~~ : OPS 4.385 & 4.387, and AIR 5.347 & 5.349.			
1.205	Has the State established and implemented a process to ensure the identification and publication in the State's AIP of significant differences between the SARPs/PANS/SUPPS and the State's regulations and practices?						Verify: 1) the establishment and effective implementation of procedures and guidelines for identifying significant differences (including coordination with all concerned entities); and 2) the establishment and implementation of procedures for publishing significant differences in the AIP, including coordination with the AIS provider.	STD A15 5.2.2 PANS Doc 10066 (AIM) App. 2 GM	Yes	CE-2

PQ No. ~~(2017~~ (2020 version)	PQ No. ~~(2020~~ (2024 version)	Type of Amendment					Description of Amendments		
		New	Revised	Deleted	Merged	No change			
							Note to the auditor: Coordinate with all audit areas to ensure that State policy and procedures are implemented.	Doc 8126 ~~C5, 5.8 &~~ Part III, C. 2, 2.6, App. ~~to C5~~A, AIP GEN 1.7 Doc 10055		

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